

110

2026.PHHC.087351



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-33653-2026
Decided On: 12.06.2026**

DALIP SINGH AND ANR.

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Ravinder Gill, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.67 dated 17.04.2026 under Section 115(2), 298, 351(3), 3(5) of BNS, 2023, subsequently added Sections 110, 117(2) and 238 of BNS, 2023 registered at Police Station Hathur, Ludhiana.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioners submits that the petitioners have been falsely implicated in the present case and the present FIR is the counter blast of the FIR No.36 dated 25.02.2026 under Sections 115(2), 118(1), 3(5) and 118(2) of BNS, 2023 (earlier Sections 323, 324, 34 and 326 of IPC)

(Annexure P-7), which was registered on the statement of Gurmail Singh against Jaspreet Singh son of Ajmer Singh, Pradeep Singh, son of Sohan Singh, Balwinder Kaur, wife of Sohan Singh and Ajmer Singh, son of Bachan Singh, and the husband of the petitioner namely Gurmeet Singh, who is a witness in the above-mentioned FIR. It is argued on behalf of the petitioners that allegations against the petitioners are baseless. He undertakes on behalf of the petitioners that they are ready and willing to join the investigation.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Satjot Singh, AAG Punjab on behalf of the respondent/State accepts notice and vehemently opposes the prayer made by learned counsel for the petitioners by stating that serious allegations have been levelled against the petitioner, who, along with the co-accused and while armed with deadly weapons, allegedly caused injuries to the complainant.

3. Analysis

Be that as it may, having given due consideration to the submissions advanced by learned counsel for the parties and particularly to the fact that the matter arises out of version and cross-version and the State has not been able to place on record any incriminating material connecting the petitioners with the alleged offence, this Court is of the considered view that custodial interrogation of the petitioners is not warranted. In the light of above, there is no valid or cogent reason to deny the bail to the present petitioners, wherein they have bona fide intentions and are ready and willing to join the

investigation and cooperate for furtherance of the same so that the final report can be submitted by the Investigating Agency in time.

4. Relief:-

Hence, the petitioners are directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioners shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioners do not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

12.06.2026

NainaRajput

Whether speaking/reasoned : *Yes/No*

Whether reportable : *Yes/No*